

24STCV16441A 24STCV16441A

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-17

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Case Number: 24STCV16441A Hearing Date: August 17, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 17, 2026

CASE NUMBER

24STCV16441A

MOTION

Motion to Enforce Judgment

MOVING PARTY

Plaintiff Joel Alvarado Rojas

OPPOSING PARTY

Defendant General Motors

MOTION

Plaintiff Elmer Joel Alvarado Rojas ("Plaintiff") moves to enforce a settlement agreement with Defendant General Motors, LLC ("Defendant"). Defendant opposes the motion.

ANALYSIS

As authority for this motion, Plaintiff cites Code of Civil Procedure sections 664.6 and 871.27. Code of Civil Procedure section 664.6 (section 664.6) provides, "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." In the instant case, the Court entered judgment pursuant to the terms of the parties' settlement on March 25, 2026, before Plaintiff filed this motion, and that judgment expressly provided the Court would retain jurisdiction pursuant to section 664.6.

Pursuant to Code of Civil Procedure section 871.27, in a civil action for restitution or replacement of a motor vehicle, the defendant must promptly process any agreed-upon motor vehicle restitution or replacement and complete the restitution or replacement within 30 days from the date of receipt of a signed release from the plaintiff's counsel. If the defendant does not do so, the defendant incurs a mandatory penalty of \$50 per day until the settlement is completed, unless the parties stipulate otherwise. (Code Civ. Proc., § 871.27, subd. (g)(2).)

In this instance, however, the parties stipulated to a different timeline. The judgment to which the parties stipulated states, in Paragraphs 5 and 6, "[n]o less than 45 days, but no more than 60 days, after Plaintiff provide [sic] the Loan Payoff Information to GM's counsel, Plaintiff will transfer possession of the Subject Vehicle to GM . . .," and "[i]n the event Plaintiff accepts this Offer, no later than 10 business days after the transfer of possession of the Subject Vehicle and execution of transfer documents referenced in Paragraph 5, GM will send via overnight mail the loan payoff check to the lender and a check to Plaintiff's counsel of record for the amounts set forth in Paragraphs 1 and 2, above, minus any loan payoff as set forth above." (Declaration of Aaron Yadegari in Support of Plaintiff's Motion, Exhibit 1, Judgment, filed March 25, 2026.) The Court notes Paragraphs 1 and 2 in the Judgment reference the amount Plaintiff is to be paid, including "any loan payoff," and Plaintiff's reasonably incurred attorney fees, expenses, and costs, the latter of which are the subject of two separately filed motions.

The record before the Court, which the parties do not appear to dispute, reflects Plaintiff provided the loan payoff information to Defendant on February 16, 2026. Thus, pursuant to the parties' agreement, Plaintiff had until April 17, 2026 to surrender the vehicle to Defendant, and Defendant then had until May 1, 2026 to provide payment to Plaintiff. On April 17, 2026 via priority mail, Defendant submitted a settlement check dated April 13, 2026 in the amount of \$54,129.40 to Plaintiff through Plaintiff's counsel of record, which was sent to Chevrolet of Montebello. (Declaration of Natalie Keshishian in Support of Opposition to Plaintiff's Motion, Exhibit A.) A cover letter for the remittance from Defendant's counsel stated, "the settlement check" was in connection with this case, and "[o]nce all necessary surrender documents have been signed, the check can be provided to the customer." (Ibid.)

Plaintiff asserts in his reply brief he is entitled to the relief he seeks because Defendant did not pay the funds and take possession of the vehicle until April 24, 2026. (Reply, pp. 1-2.) But, as detailed above, the record placed before the Court does not so indicate. Whatever procedures counsel utilized in handling settlement matters in other instances is of no moment, as it appears, in the instant action, Defendant complied with the specified terms to which the parties had agreed.

CONCLUSION AND ORDER

Accordingly, the motion is denied.

Plaintiff is to give notice of the Court's ruling and to file proof of service of same.